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Credit - Drishti Ias

Separation of Powers and Judicial Independence

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For Prelims: One Nation, One Election , Separation of powers , Directive Principle of State Policy , Article 143

For Mains: Doctrine of Separation of Powers, Checks and balances between the Legislature, Executive and Judiciary

Source: TH

Why in News?

The **Supreme Court of India** declined a proposed meeting with the **Joint Parliamentary Committee (JPC) examining the Constitution (129th Amendment) Bill, 2024,** which seeks to implement **'One Nation, One Election' (simultaneous elections).**

- The proposed interaction was called off after the judiciary and opposition members cited concerns regarding the **doctrine of the separation of powers** and the **prospect of future judicial review.**

Summary

- The Supreme Court's refusal to engage with the JPC highlights the importance of **judicial independence, constitutional propriety and separation of powers** between the Legislature and Judiciary.
- The **Constitution (129th Amendment) Bill, 2024** , including proposed **Article 82A** , seeks simultaneous Lok Sabha and State Assembly elections, with provisions for **unexpired terms and election deferment** .

What is the Doctrine of the Separation of Powers?

- **Definition & Origin:** Coined by the French philosopher **Montesquieu** in his work *The Spirit of the Laws* , the doctrine mandates the division of state power into three distinct branches: the **Executive, the Legislature, and the Judiciary** .

- The goal is to prevent the concentration of power, avoid authoritarianism, and safeguard civil liberties.

- **Indian Constitutional Scheme:** Unlike the rigid "watertight compartments" seen in the US Constitution, India follows a functional separation with a robust system of **Checks and Balances** .
  - **Article 50:** A **Directive Principle of State Policy (DPSP)** that directs the State to separate the judiciary from the executive in public services.
  - **Articles 121 & 211:** Expressly restrict Parliament and State Legislatures from discussing the conduct of judges of the Supreme Court and High Courts in the discharge of their duties.
  - **Articles 122 & 212:** Prohibit the courts from inquiring into the validity of the proceedings of the Legislature, ensuring parliamentary autonomy.
- **Basic Structure Doctrine:** In landmark judgements such as ***Kesavananda Bharati v. State of Kerala (1973)*** **and** ***Indira Nehru Gandhi v. Raj Narain (1975)*** , the Supreme Court firmly established that the separation of powers is an inviolable part of the **Basic Structure** of the Indian Constitution, beyond the amending power of Parliament.

What are the Concerns Regarding Separation of Powers?

- **Threat of Pre-Adjudication and Bias:** The legislature's exclusive domain is drafting and enacting laws, while the judiciary's mandate is **Judicial Review (Article 13)** .
  - If sitting judges advise or discuss a bill during its drafting stage, it inherently compromises their neutrality.
  - If the same bill is later passed into law and challenged in court, those judges would face a massive conflict of interest.
- **Erosion of Judicial Independence:** The judiciary relies on public trust in its **absolute impartiality.**
  - Closed-door meetings between parliamentary panels (dominated by political representatives) and judges risk creating a perception of judicial alignment with the government's legislative agenda, damaging the credibility of the courts.
- **Bypassing Established Constitutional Channels:** The Constitution already provides a formal mechanism for the State to seek the Supreme Court's legal opinion. Under **Article 143 (Advisory Jurisdiction)** , the President can refer a question of law or public importance to the Supreme Court.
  - Bypassing this formal, transparent route for informal "study visits" undermines constitutional architecture.
- **Blurring of Institutional Silos:** While a rigid separation is not practical, involving the judiciary in the law-making process crosses a bright constitutional line.
  - It blends legislative drafting with judicial insight, leading to institutional overreach where the courts might inadvertently become co-authors of legislation.

Constitution (129th Amendment) Bill, 2024

- **Background:** India originally conducted simultaneous elections for the Lok Sabha and state assemblies between 1951 and 1967.
  - This cycle was broken due to political instability and the premature dissolution of various legislative bodies.
  - To explore restoring this system, the Union Government constituted a High-Level Committee led by former President Ram Nath Kovind in September 2023. The committee submitted its report in March 2024, recommending a phased transition to simultaneous polls.
- **About:** The **Constitution (129th Amendment) Bill, 2024, introduced in December 2024,** is the primary legal framework to implement 'One Nation, One Election' (ONOE).
  - It aims to synchronise elections for the Lok Sabha and all State Legislative Assemblies. The overarching goal is to reduce public expenditure, ease the logistical burden on security forces, and prevent governance disruptions caused by the frequent application of the **Model Code of Conduct.**
  - The current Bill strategically **excludes local bodies (Panchayats and Municipalities).**
- **Key Provisions:**
  - **Insertion of Article 82A:** Creates the overarching constitutional mechanism mandating the **Election Commission of India (ECI)** to conduct simultaneous elections for the House of the People (Lok Sabha) and all State Legislative Assemblies.
  - **The "Unexpired Term" Rule (Amending Articles 83 & 172):** If a State Assembly or the **Lok Sabha** is dissolved prematurely (e.g., due to a fallen government), mid-term elections will be held. However, the newly elected body will only serve for the remaining (unexpired) duration of the original five-year cycle, ensuring the next elections re-align nationally.
  - **Election Deferment:** Article 82A empowers the ECI to advise the President to defer a specific state assembly election in case of localized emergencies. Even if deferred, that assembly's term will **end simultaneously with the Lok Sabha.**
  - **Expanding Parliament's Purview (Amending Article 327):** Adds the phrase "conduct of simultaneous elections" to Parliament's existing powers regarding the delimitation of constituencies, granting it clearer authority over state legislature elections.

What Measures are Needed to Prevent Institutional Friction and Uphold Constitutional Integrity?

- **Utilizing Independent Legal Experts:** Instead of approaching sitting judges, parliamentary committees should rely on former judges, the **Attorney General of India (Article 76)** , the **Law Commission** , and independent constitutional scholars for legal insights on complex pending bills.
- **Strict Adherence to Constitutional Propriety:** Both Parliament and the Judiciary must actively self-regulate and respect the boundaries demarcated by the Constitution. The Supreme Court's decision to decline the recent JPC meeting serves as an excellent precedent for maintaining this distance.
- **Institutionalising Protocols for JPCs:** Parliament should frame explicit internal guidelines within the *Rules of Procedure and Conduct of Business* . These rules should formally restrict parliamentary

committees from seeking informal policy discussions or "study visits" with members of the higher judiciary.

- **Invoking Formal Advisory Routes:** If constitutional clarity on a pending reform is absolutely critical to the nation's interest, the **Executive should advise the President to formally invoke Article 143,** ensuring that the Supreme Court's opinion is sought on record and through proper legal proceedings.

Conclusion

Preserving the **Doctrine of Separation of Powers** is not merely an academic exercise; it is a practical imperative to ensure that the Legislature remains supreme in lawmaking, while the Judiciary remains a fearless, independent, and unbiased arbiter of constitutional justice.

Drishti Mains Question:

The Indian Constitution does not envisage a rigid separation of powers, but rather a system of functional separation supported by checks and balances. Discuss.

Frequently Asked Questions

1. What is the doctrine of separation of powers?
It divides state functions among the **Legislature, Executive and Judiciary** and prevents concentration of power through **checks and balances** .

2. Is separation of powers part of the Basic Structure of the Indian Constitution?
Yes. The Supreme Court has recognised **separation of powers as part of the Basic Structure** , limiting Parliament’s amending power.

3. What is Article 82A proposed under the Constitution (129th Amendment) Bill, 2024?
Article 82A seeks to provide the constitutional framework for **simultaneous elections to the Lok Sabha and State Legislative Assemblies** .

4. What is the significance of Article 143?
Article 143 empowers the President to refer questions of **law or public importance** to the Supreme Court for its advisory opinion.

5. How does the ONOE Bill address premature dissolution of a legislature?
Under the proposed **unexpired-term mechanism** , a legislature elected after premature dissolution would serve only for the **remaining period of the original term** , helping restore electoral synchronisation.

[Watch Video on YouTube: ▶ **https://www.youtube.com/embed/xzH2sCJsbvU**]

UPSC Civil Services Examination, Previous Year Questions (PYQs)

Prelims

Q. Consider the following statements: (2017)

1. The Election Commission of India is a five-member body.
2. Union Ministry of Home Affairs decides the election schedule for the conduct of both general elections and bye-elections.
3. Election Commission resolves the disputes relating to splits/mergers of recognised political parties.

Which of the statements given above is/are correct?

(a) 1 and 2 only

(b) 2 only

(c) 2 and 3 only

(d) 3 only

Ans: (d)

Mains

Q. Discuss the role of the Election Commission of India in the light of the evolution of the Model Code of Conduct. **(2022)**

Q. Simultaneous election to the Lok Sabha and the State Assemblies will limit the amount of time and money spent in electioneering but it will reduce the government's accountability to the people". Discuss. **(2017)**

57th GST Council Meeting

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Source: TH

Why in News?

The **57th Goods and Services Tax (GST) Council meeting** , chaired by the Union Finance Minister, approved comprehensive procedural and structural reforms to simplify **GST registration, refunds, input tax credit, exports and litigation** , with most changes expected to take effect from 1 st **April 2027** .

What are the Key Outcomes of the 57th GST Council meeting?

- **GST Rate Rationalisation:** No rate changes were made in the meeting. **GST rate decisions will now be taken once a year** and implemented from the beginning of the subsequent financial year.
- **Simplified Registration:** The Council approved greater certainty regarding documents required for GST registration. **61% of taxpayers currently receive automatic registration within three working days** .
- **Faster refunds:** Refund applications are proposed to be acknowledged within **10 days instead of 15 days** .
- **Inverted duty structure: Input services will become eligible for refunds under the inverted duty structure from 1 st November 2026** .
- **Reduced Litigation:** No GST notices will be issued for tax amounts below **Rs 10,000** , while existing pending notices below this threshold will be withdrawn.
- **Inter-State Movement of Goods:** Goods can be inspected, detained or seized only by officers of the **supplier or destination State** . Interception will require **specific intelligence and authorisation from a Joint Commissioner-level officer** .
- **Decriminalisation:** The Council recommended **removing arrest powers under GST** and raising the **prosecution threshold from Rs 1 crore to Rs 5 crore** .
- **Faceless Assessment:** The Central Government plans to introduce a **faceless assessment system for Central GST** , modelled on the income-tax system. A framework will be released for public consultation before **Budget 2027** , with implementation planned for **2027–28** .
- **Service exports:** Services provided by an Indian company to a foreign client through its **overseas branch** can qualify for export benefits.
  - Testing, repair, certification and research conducted in India for foreign clients may also qualify as **exports of services even when the goods remain in India** .
- **Overall significance:** The reforms seek to improve **ease of doing business, tax certainty, compliance efficiency, movement of goods and taxpayer trust** , while reducing unnecessary litigation and enforcement.

What are the Key Facts About the Goods and Services Tax (GST) Council?

- **About:** The **GST Council is a constitutional body established under Article 279A through the 101 st Constitutional Amendment Act, 2016** , responsible for recommending policies to create a harmonised GST regime and a unified national market.
- **Composition:** Chaired by the **Union Finance Minister** and includes the **Union Minister of State for Finance/Revenue** and **State Finance or Taxation Ministers** .
- **Key Function:** Makes recommendations on **GST rates, exemptions, threshold limits, model GST laws, place of supply and principles for apportionment of IGST** .
- **Petroleum Products:** Under **Article 279A(5)** , the Council recommends the date from which GST may be levied on **petroleum crude, diesel, petrol, natural gas and aviation turbine fuel** .
- **Quorum: At least 50% of the total members** must be present for a meeting to constitute a quorum.
- **Voting:** Decisions require a **3/4th weighted majority** of members present and voting. The **Centre**

has 1/3rd weightage , while **States collectively have 2/3rd weightage** .

- **Cooperative Federalism:** The GST Council is a key institution of **Centre-State fiscal cooperation** , bringing both levels of government together for GST policymaking.

Goods and Services Tax

- **About:** The **GST** is a **destination-based, value-added indirect tax** introduced through the **101 st Constitutional Amendment Act, 2016** , aimed at creating a **unified national market and simplifying India's indirect tax system** .
  - GST subsumes several Central and State taxes, including **Central Excise Duty, Service Tax, VAT, Central Sales Tax and Luxury Tax** , and is levied on the **supply of goods and services** .
  - India follows a **dual GST model** , under which the Centre levies **CGST** and States levy **SGST** on intra-State supplies, while **IGST** is levied on inter-State supplies and imports along with applicable customs duties.
- **Goods and Services Tax Network (GSTN)** : It provides the technology backbone for GST registration, return filing, e-invoicing and compliance.
- **Next-Generation GST reforms (GST 2.0)** : Approved by the **56th GST Council meeting in 2025** , sought to simplify the GST rate structure, reduce the compliance burden and improve tax administration.
  - The reforms streamlined GST mainly into **5% and 18% tax slabs** , while introducing a **40% GST rate for specified luxury and sin goods** such as tobacco products, certain high-end vehicles, yachts and private aircraft.
  - They also provide **consumer and household relief through lower GST rates and exemptions on selected essential goods, medicines and insurance** , while supporting **MSMEs, startups, manufacturers and artisans** through lower taxation on key inputs and sectors such as cement and handicrafts.
  - At the administrative level, GST is increasingly becoming **technology-driven through GSTN, e-invoicing, pre-filled returns, real-time data validation, Artificial Intelligence AI, Machine Learning ML and data analytics** , helping improve compliance, reduce errors, detect tax evasion and strengthen India's indirect tax administration.

Frequently Asked Questions

1. What is the constitutional basis of the GST Council?
The GST Council is a constitutional body under Article 279A, created through the 101st Constitutional Amendment Act, 2016.

2. What are the major outcomes of the 57th GST Council meeting?
Key reforms include faster refunds, simplified registration, reduced litigation, restrictions on GST enforcement, service-export reforms and faceless Central GST assessment.

3. How does the GST Council follow cooperative federalism?
The Council includes Union and State representatives, with 1/3rd voting weight for the Centre and 2/3rd for States, requiring a 3/4th weighted majority for decisions.

4. What is GST 2.0?
GST 2.0 refers to the Next-Generation GST reforms aimed at simplifying the tax structure, reducing compliance costs and strengthening technology-driven tax administration.

5. What is the significance of the faceless GST assessment system?
The proposed faceless Central GST assessment aims to reduce direct interaction, improve transparency and consistency, and minimise scope for arbitrary tax administration.

[Watch Video on YouTube: ▶ **https://www.youtube.com/embed/ydviZZqw5ts**]

UPSC Civil Services Examination Previous Year Question (PYQ)

Prelims

Q. What is/are the most likely advantages of implementing 'Goods and Services Tax (GST)'? (2017)

1. It will replace multiple taxes collected by multiple authorities and will thus create a single market in India.
2. It will drastically reduce the 'Current Account Deficit' of India and will enable it to increase its foreign exchange reserves.
3. It will enormously increase the growth and size of the economy of India and will enable it to overtake China in the near future.

Select the correct answer using the code given below

(a) 1 only
(b) 2 and 3 only
(c) 1 and 3 only
(d) 1, 2 and 3

Ans: (a)

Mains

Q. Explain the rationale behind the Goods and Services Tax (Compensation to States) Act of 2017. How has COVID-19 impacted the GST compensation fund and created new federal tensions? **(2020)**

Navi Pillay Awarded Nobel Peace Prize 2026

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Source: TH

South African jurist and human rights champion of Indian descent (Tamil Nadu), Navanethem “Navi” Pillay, was named the recipient of the 2026 **Nobel Peace Prize** . However, the historic announcement was immediately overshadowed by a major geopolitical development.

- Hours after the award was announced, the United States imposed sweeping economic sanctions on the **International Criminal Court (ICC)** , an institution where Pillay formerly served as a judge.
- **2026 Nobel Peace Prize Laureate:** Navi Pillay, a South African jurist of **Indian Tamil ancestry** , pioneered anti-apartheid legal advocacy and contributed to international criminal jurisprudence.
  - As a judge of the **International Criminal Tribunal for Rwanda (ICTR)** , she contributed to landmark jurisprudence recognising **rape and sexual violence as acts of genocide** , particularly in the **Akayesu case (1998)** .
  - She subsequently served as a judge at the **International Criminal Court (ICC)** , as the **UN High Commissioner for Human Rights (2008–2014)** and as an **ad hoc judge at the International Court of Justice (ICJ)** in the Rohingya genocide case concerning Myanmar.
  - She also chaired the **UN Independent International Commission of Inquiry on the Occupied Palestinian Territory (2021–2025)** .
  - Navi Pillay became the **first South African woman** and the fifth South African overall to win the Nobel Peace Prize, joining laureates such as **Nelson Mandela** and Desmond Tutu.
- **US Sanctions on the International Criminal Court (ICC):** The US administration imposed comprehensive economic penalties targeting ICC officials and service vendors (telecom and software providers), citing resistance against the tribunal exercising jurisdiction over citizens of non-member states.
- **ICC:** Established by the **Rome Statute of 1998** (in force since **2002**) with headquarters at **The Hague, Netherlands** , the ICC functions as an independent permanent court prosecuting **genocide, war crimes, crimes against humanity, and the crime of aggression** .
- **Principle of Complementarity:** The ICC operates strictly as a **"court of last resort,"** stepping in only when domestic legal systems are unwilling or unable to genuinely carry out proceedings.
- **State Party Status and India's Stand:** While the ICC comprises **125 member states** , major powers including the **US, China, and Russia** are not parties.
  - **India is not a party to the Rome Statute** , citing state sovereignty concerns, the non-inclusion of certain weapons categories, and the overarching powers given to the **UN Security Council** .



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- **Nobel Prize in Physics 2026: IceCube Neutrino Observatory**
- **2026 Nobel Prize in Literature**

National Conclave on Tribal Rights

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Source : **PIB**

The Ministry of Tribal Affairs organised the National Conclave on **“Constitutional Rights and Legal Provisions for Tribal Communities”** at SCOPE Complex, New Delhi.

- **Objective:** Identify difficulties faced by tribal communities in accessing constitutional rights and develop practical recommendations through field-level feedback and sharing of best practices.
- **Constitutional Provisions**
  - **Articles 15(4) and 16(4):** Enable special provisions and reservation for STs in education and public employment.
  - **Article 19(5):** Permits restrictions to protect the interests of Scheduled Tribes.
  - **Article 29:** Safeguards the distinct language, script and culture of communities, including tribal groups.
  - **Article 46:** Directs the State to promote STs’ educational and economic interests and protect them from social injustice and exploitation.
  - **Article 342:** Specifies Scheduled Tribes in relation to particular States or Union Territories.
  - **Article 338A:** Establishes the NCST to monitor safeguards and investigate complaints regarding tribal-rights deprivation.
  - **Fifth Schedule:** Provides for Scheduled Areas, Tribal Advisory Councils and safeguards over tribal land and administration.
- **Legal Provisions:**
  - **Forest Rights Act, 2006:** Recognises individual and community forest rights and addresses historical injustice.
  - **PESA Act, 1996:** Strengthens Gram Sabhas’ role in self-governance, resources and development in Scheduled Areas.
  - **SC/ST (Prevention of Atrocities) Act, 1989** : Protects STs against atrocities, discrimination and exploitation.

Read More: **Tribal Development Approaches**